

Clear

Department of the Interior
Bureau of Safety and Environmental Enforcement

Print Form

SOLE SOURCE JUSTIFICATION
FAR Subpart 13.5 - For Certain Commercial Items

(Mandatory for Acquisitions > SAT)
(Optional for Acqs. ≤ SAT)

1. Bureau and Contracting Activity [FAR 13.501(a)(1)(ii) and 6.303-2(b)(1)]

This acquisition is being executed by the Bureau of Safety and Environmental Enforcement (BSEE), Acquisition Management Division (AMD), Acquisition Operations Branch (AOB) for a requirement developed by the Technical Services Division (TSD), Business Services Branch (BSB). The BSEE BSB is tasked with operating all IT resources for BOEM and BSEE in support of Technical Information Management System (TIMS). The requesting office and funding source is the Office of Structural and Technical Support (OSTS), a division within the Regional Field Operations of BSEE.

2. Description of Supplies or Services [FAR 13.501(a)(1)(ii) and 6.303-2(b)(3)]

This acquisition is for the purchase of a software update for BSEE's GOMOS Metocean Data Software (E17PX00030) and SIM for GOM Platforms Software (140E0118P0013) and to incorporate the updated GOMOS2020 data purchased in FY24 (140E0124P0015).

3. Requisition No.

5. Name of Proposed Source(s)
ISIMS LLC

4. Cost Estimate (including options)[FAR 6.303-2(b)(3)]

6. REQUESTING OFFICE CERTIFICATION

I certify that this recommendation contains the information required by FAR 13.501(a)(1)(ii) and 6.303-2(b) and its contents are accurate.

Requesting Office Rep. (Name & Title)

Signature:

Phone No:

Date:

7. ACQUISITION OFFICE CERTIFICATION

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Contracting Officer (Name)

Signature:

Phone No:

Date:

Identify the authority being used to justify a sole source acquisition [FAR 13.501(a)(1)(ii)]. Refer to block number 10 for justification details.

8. ☒ **Section 4202 of the Clinger-Cohen Act of 1996 .**

9. ☐ **41 U.S.C. 428a - Services Acquisition Reform Act of 2003.**

10. JUSTIFICATION (Attach additional pages if needed)

(a) Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited [FAR 6.303-2(b)(5)]. [Prepared by Program Office]

Market research indicated that ISIMS LLC is a leader in the implementation of SIM methodology and the development of the structural risk evaluation model. This market research is based upon a review of the ISIMS LLC prepared structural inspection plans which were submitted to BSEE and used SIM methodology to develop a structural risk evaluation model. Additionally, ISIMS LLC has completed for the development of the GOMOS Metocean Data Software (E17PX00030) and the SIM for GOM Platforms Software (140E0118P0013) for BSEE. These are proprietary software products, and only the manufacturer, ISIMS LLC is able to provide licensing, technical support, and updates.

(b) Describe the efforts taken to ensure offers were solicited from as many potential sources as is practicable, including whether a Government-wide point of entry (GPE) notice was or will be published as required by FAR 5.2 and, if not, which exception under FAR 5.202 applies. [FAR 6.303-2(b)(6)]. [Prepared by Program Office]

A GPE notice will be published in accordance with FAR 5.2.

(c) Demonstration that the anticipated cost to the Government will be fair and reasonable **[FAR 6.303-2(b)(7)]**. [Prepared by Contracting Officer]

BSEE will obtain sufficient pricing details from the intended source to allow for a thorough price analysis to ensure pricing quoted under this effort is fair and reasonable. BSEE may use the following technique to determine price reasonableness: published market pricing, comparison to the Independent Government Cost Estimate (IGCE), and pricing information from the quoter.

(d) Describe the market research conducted and the results or a statement of the reason market research was not conducted. **[FAR 6.303-2(b)(8)]**. [Initiated by the Program Office and finalized in collaboration with the Contracting Officer]

BSEE's market research revealed that ISIMS LLC is uniquely qualified to perform the described effort. ISIMS LLC is a leader in the implementation of SIM methodology and the development of the structural risk evaluation model. GOMOS is the source data and data model of the American Petroleum Institute (API) recommended practice (RP). ISIMS LLC has the only source data that meets the BSEE regulatory process and as a result has been determined to be the only source capable of satisfying this requirement.

(e) Any other facts supporting the use of a sole source acquisition. **[FAR 6.303-2(b)(9)]**. [Prepared by Program Office]

Metoccean criteria (wave, wind and current) are the major components in the structural design basis of new offshore platforms (both fixed bottom and floating) and for the structural assessment of all existing offshore platforms. In 2017 (E17PX00030) and in 2018 (140E0118P0013), BSEE developed the capability to generate its own site specific metoccean criteria in accordance with the latest methodology found in API RP 2MET, 1st Edition. BSEE uses this in-house capability to compare and validate the metoccean criteria presented as part of an operator's design/assessment reports. The underlying data used in part is the GOMOS data. This request is for an update to the data already procured (GOMOS08 and GOMOS2014) and incorporate data already procured (GOMOS2020). If a procurement were to be made from another company, the data may not be compatible with the BSEE developed site specific metoccean criteria.

(f) List sources, if any, that expressed, in writing, an interest in the acquisition. **[FAR 6.303-2(b)(10)]**. [Prepared by Program Office]

No other sources have expressed interest in this acquisition.

(g) Statement of the actions, if any, the agency may take to remove or overcome any barriers that led to competition before any subsequent acquisition for supplies and services. **[FAR 6.303-2(b)(11)]** *[Initiated by the Program Office and finalized in collaboration with the Contracting Officer]*

The Government will continue to conduct thorough market research to gauge the marketplace capabilities for future requirements.

APPROVALS [FAR 6.304]

Over SAT	11. Chief of the Contracting Office (Name & Title)	☐ APPROVE ☐ DISAPPROVE	(Signature)	(Phone No.)
				(Date)
Over \$750,000	12. Competition Advocate (Name & Title)	☐ APPROVE ☐ DISAPPROVE	(Signature)	(Phone No.)
				(Date)
Over \$15 million	13. Head of the Contracting Activity (Name & Title)	☐ APPROVE ☐ DISAPPROVE	(Signature)	(Phone No.)
				(Date)
Over \$75 million	14. Departmental Senior Procurement Executive (Name & Title)	☐ APPROVE ☐ DISAPPROVE	(Signature)	(Phone No.)
				(Date)

INSTRUCTIONS FOR COMPLETING FORM

Block No.	
1	Identify Bureau initiating the requirement and Acquisition Office processing the requirement. - Bureau of Safety and Environmental Enforcement (BSEE), or Bureau of Ocean Energy Management (BOEM)
2	Provide a clear, concise description of the product(s) and/or service(s) to be procured, including the delivery schedule and/or the period of performance (including all option periods). Always include the estimated value in Section 4 below. This provides the reviewing and approving official with a better understanding of the scope, magnitude, and complexity of the requirement.
4	Include all applicable options and system life-cycle costs.
5	Include more than one source as a proposed vendor. For example, if the procurement is based on an urgent need, you must still contact as many potential sources as is practicable unless the justification for urgency contains detailed documentation to show that it is not practicable under the circumstances to solicit additional sources.
6 & 7	Obtain certification from the requesting office and contracting officer prior to submitting for approval.
8-9	Check the box next to the justifying authority. Only one authority can be cited.
10(a)	Provide an explanation of the contractor's unique qualifications or the nature of the acquisition that requires the use of the statutory authority cited. This is the most important part of the justification because it demonstrates that the prospective contractor has <u>unique qualifications and/or specialized capabilities or expertise</u> that is not prevalent in the marketplace. Also, explain what unique qualifications and special capabilities the contractor possesses. Unique qualifications and expertise is defined as knowledge that is currently very limited within the marketplace; there is only one company or individual that has the expertise to provide the product or perform the required services.
10(b)	If the requirement was not publicized, explain why it was not publicized. When an acquisition contains brand name specifications, the contracting officer shall include with the solicitation the justification or required documentation. See FAR 5.102(a) (6) for the requirement to post the brand name justification. The justification should normally be prepared after the requirements notification is posted on Federal Business Opportunities, to allow the requirements office an opportunity to examine the results of industry inquiries and reach a conclusion concerning the potential degree of competition. If the justification is staffed prior to satisfying the synopsis requirement, state the reasons why this was done after the justification was processed. This paragraph should provide a description of the type of action, i.e., purchase and/or delivery order, task orders, and estimated quantities. This section should also include a description of the efforts by the program office and contracting office to ensure that offerors are solicited from as many potential sources as possible.
10(c)	Provide a narrative of the measures performed by the contracting officer to ensure that the costs and/or prices will be fair and reasonable before negotiations commence. In addition, provide the methodology used in the market research analysis that supports a determination of fair and reasonable costs/prices. Provide any information, such as commercial pricelists or prior acquisition history that will help the contracting officer determine that the anticipated cost is fair and reasonable.

INSTRUCTIONS FOR COMPLETING FORM

Block No.	
10(d)	Issuance of a synopsis as required in FAR Part 5 does not satisfy the requirement to conduct a market survey. A survey can include announcements in trade journals or telephone surveys with interested/knowledgeable individuals in or out of government. Market research requires collecting and analyzing product/service information on the technical capabilities and prices/costs within the marketplace to satisfy agency needs. If market research was not conducted, the reasons it was not conducted should be stated. Since this is a sole source acquisition, the only possible way to state that there is only one contractor who can fulfill the agency's needs, is to conduct market research and it must be summarized here.
10(e)	Explanation of why technical data packages, specifications, engineering descriptions, statements of work, or purchase descriptions suitable for full and open competition have not been developed or are not available. -When FAR 6.301-2 is cited for follow-on acquisitions as described in 6.302-1(a) (2) (ii), an estimate of the cost to the Government that would be duplicated and how the estimate was derived. -When FAR 6.302-2 is cited, data, estimated cost, or other rationale as to the extent and nature of the harm to the Government.
10(f)	Include a listing of the sources that expressed written interest in the acquisition. If applicable, clearly state "To date, no other sources have expressed an interest in writing." [Also state that the notices required by FAR 5.201 shall be/have been published and any proposals received shall be considered. If a FedBizOpps notice will not be published, state which exception in FAR 5.202 applies.
10(g)	Describe actions taken, or that will be taken, to remove or overcome any barriers to competition before any subsequent acquisitions for the item/service or brand name item(s), including challenges to restrictive data markings, data rights, preparation of a performance based work statement, etc. If planning a competition, include the estimated date when the competitive procurement will occur. If competition is not planned, state so and provide the appropriate justification. Include written responses to synopsis announcements and other expressions of interest. All responses must be addressed prior to the approval of the justification. State the reasons why it is sole source. If this is a follow-on procurement, state the measures initiated to eliminate or reduce competitive barriers.
11-14	If any person required to sign-in these blocks does not approve, the procurement shall not proceed any further and the justification shall be returned to the requisitioner through the contracting officer. All signatures required on the form (as applicable to the particular acquisition) must appear in order for the procurement to proceed.